

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Justice Muhammad Ali Mazhar
Justice Musarrat Hilali

C.P.L.A.Nos.584-K, 585-K, 586-K & 597-K of 2025. Appeal against the Judgment dated 27.01.2025 passed by the Sindh Service Tribunal, Karachi in Appeal Nos.1134, 1135, 1136 & 1137/2021

**C.M.A.452-K/2025 IN C.P.L.A.584-K/2025
C.M.A.453-K/2025 IN C.P.L.A.585-K/2025
C.M.A.454-K/2025 IN C.P.L.A.586-K/2025
C.M.A.455-K/2025 IN C.P.L.A.597-K/2025
(Stay applications)**

Nizamuddin Abbasi

(In CP.584-K & 597-K/25)

Kashif Iqbal

(In CP.585-K & 586-K/25)

...Petitioners

Versus

The Province of Sindh through Chief Secretary,
Sindh Secretariat & others

(In all cases)

.....Respondents

For the Petitioner:

Mr. Abid S. Zuberi, ASC
Mr. Ahmed Ali Ghumro, ASC

For the Respondent No.1:

Syed Sibtain Mehmood, AAG, Sindh
Dr. Zulfiqar Ali, Deputy Director

For the Respondent No.3:
(CP.584-K & 585-K/25)

Mr. Abdul Samad Sh. (In person)
(Through Video Link from Karachi)

For other Respondents:

Nemo

Date of Hearing:

11.02.2026

Judgment

Muhammad Ali Mazhar, J: These civil petitions are directed against the Judgment dated 27.01.2025 passed by the Sindh Service Tribunal, (**SST**) Karachi in Appeals No. 1134, 1135, 1136 & 1137/2021.

2. According to the narrative of the petitioners, the Director General Agriculture Engineering & Water Management Sindh advertised various posts for appointment on contract basis. The petitioners in pursuance of advertisement applied for the post of Assistant Director BPS-17. Written test was conducted by Mehran University of Engineering & Technology, Jamshoro and the petitioners were appointed vide appointment letter dated 28.02.2006, subsequently, the petitioners were regularized on 09.08.2016 in the light of Sindh (Regularization of Ad hoc and Contract Employees) Act, 2013, (**2013 Act**) which was promulgated on 25.03.2013. The date of regularization was effected from 25.03.2013 i.e. the date of promulgation of the aforesaid Act and Notification was accordingly issued on 16.01.2018. In the provisional seniority list, the names of petitioners were rightly placed according to the effective date of regularization and by efflux of time, the petitioners on the recommendation of the Departmental Promotion Committee (**DPC**) and with the approval of the competent authority were also promoted from the post of Assistant Director (BPS-17) to Deputy Director (BPS-18) vide notification dated 24-06-2019. However, when the Final Seniority list of Deputy Directors (BPS-18) was issued on 28.05.2021, it transpired that the date of regular appointment in BS-17 was unlawfully altered as 16.01.2018, instead of 25.03.2013. The petitioners filed the departmental appeals which were not decided within the statutory period, therefore, they approached the SST and filed Appeals under Section 4 of the Sindh Service Tribunal Act, 1973 and entreated that the seniority list dated 28.05.2021 of Deputy Directors BS-18 mentioning the date of regularization of appellants as Assistant Directors BPS-17 on 16.01.2018 instead of 25.03.2013 is illegal and they also prayed for setting aside the seniority list with further directions to the respondent department to issue the fresh final seniority list of Deputy Director BS-18 with correct date of regularization as Assistant Director BPS-17 with effect from 25.03.2013. The learned SST dismissed the appeals by dint of impugned consolidated judgment.

3. The learned counsel for the petitioners argued that learned SST failed to consider that the employees appointed on contract basis were deemed to have been validly appointed according to Section 3 of the 2013 Act on regular basis, therefore the seniority was to be reckoned from the date of promulgation of the said Act. The respondent department illegally altered the date of regularization from 25.03.2013 to 16.01.2018 to deprive the petitioners from their legitimate seniority in BPS-18. It was further contended that after the promotion, the impugned seniority list was issued with an incorrect date of regularization which seriously violated the vested rights of the petitioner under Article 4 and 25 of the Constitution of Islamic Republic of Pakistan 1973 (**Constitution**).

4. The learned Additional Advocate General, Sindh argued that the learned SST decided the matter after considering Rule 10 (1) & (2) of the Sindh Civil Servants (Probation, Confirmation and Seniority) Rules, 1975, which provides that the seniority of a civil servant shall be reckoned from the date of his regular appointment and no appointment made on ad-hoc basis shall be regularized retrospectively. The petitioners and their colleagues were regularized with immediate effect on promulgation of 2013 Act, vide notification dated 09.08.2016. Pursuant to the Sindh High Court order, another notification was issued on 16.01.2018 whereby the date of regularization was given effect from 25.03.2013 and provisional and the final seniority lists were issued. However on their promotion from the post of Assistant Director (BPS-17) to Deputy Director (BPS-18), the final seniority list of Deputy Directors (BPS-18) of "On Farm Water Management" was issued by this department as per rules and in view of another order of the Sindh High Court dated 17.12.2018 in CP No.D-6611/2018, showing the date of regular appointment of the petitioners in BPS-17 as 16.01.2018 instead of 25.03.2013. He further argued that on receiving objections, the matter was examined under Rule 10 (1) & (2) of the Sindh Civil Servants (Probation, Confirmation & Seniority) Rules, 1975 and Law Department also advised that the seniority list issued placing the contractual Deputy Directors below SPSC

qualified Deputy Directors appears to be lawful but they further advice to proceed as per directions issued by the High Court in C.P.No.D-6611/2018 for their regularization. According to learned Add.AG, Sindh, the learned SST passed the fair speaking order and rightly dismissed the service appeals. However, he admits that 2013 Act is still in field with full force.

5. Mr. Abdul Samad Shaikh, Respondent No.3, in CP.584-K & 585-K/25 appeared in person through video link. He also filed a concise statement and argued that while interpreting the effect of notification dated 16.01.2018, learned Sindh High Court rendered findings contrary to its own findings recorded in order dated 21.12.2017 passed in CP No.D-1899/2012 and 1433/2012 filed by the same petitioners, wherein, while interpreting Section 3 of 2013 Act [Sindh (Regularization of Adhoc & Contract Employees) Act, 2013], it was held that employees regularized in terms of section 3 shall be regularized w.e.f date of promulgation of Act, 2013; the petitioners were initially appointed purely on contract basis in the year 2006 on a project post in a foreign funded project namely National Program for Improvement 29000 Watercourses ("NPIW") in Sindh for two years' period as Assistant Director (Field) (BPS-17); the petitioners were regularized pursuant to Section 3 of the aforesaid Act vide Notification dated 16.01.2018. It was further submitted by him that the petitioners were relying on the seniority list dated 15.10.2018, which was issued without adhering to Rule 9 (1) of the Sindh Civil Servants (Seniority) Rules, 1975 and without consultation with the SGA&CD or Finance Department. The illegality of bifurcation of cadre service and issuance of separate seniority list(s) was observed by the Provincial Selection Board-II in its meeting dated 01.09.2020. He further argued that learned Sindh Service Tribunal, Karachi dismissed the Service Appeals through well-reasoned judgment on the strength of Rule (1) & (2) of the Sindh Civil Servants (Probation, Confirmation and Seniority) Rules, 1975 which does not require any interference. The seniority is governed by Section 8 (4) of the Sindh Civil Servants Act, 1973, which is reckoned from the date of regular appointment. The

petitioners claim for seniority from the date of promulgation of the 2013 Act, is illogical and unlawful.

6. Heard the arguments. In the beginning, we would like to consider the minutiae of the 2013 Act, which was promulgated on 25th March 2013 to provide for regularization of the services of certain employees appointed on adhoc and contract basis or otherwise (excluding the employees appointed on daily-wages and work-charged basis) in the Province of Sindh. In Section 2 (b) (definition clause), "appointment of an employee" means the appointment of a duly qualified employee made on adhoc and contract basis or otherwise (excluding the appointment on daily-wages and work-charged basis); while Section 2 clause (e) defines the "post" which means the post held by an employee in Government department and includes the post in a project of such department in connection with the affairs of the Province. The most crucial provision is Section 3 of the 2013 Act, which is reproduced as under:-

3. Regularization of services of employees. Notwithstanding anything contained in the Act or rules made thereunder or any decree, order or judgment of a court, but subject to other provisions of this Act, an employee appointed on ad hoc and contract basis or otherwise (excluding the employee appointed on daily-wages and work-charged basis), against the post in BS-1 to BS-18 or equivalent basic scales, who is otherwise eligible for appointment on such post and is in service in the Government department and its project in connection with the affairs of the Province, immediately before the commencement of this Act, shall be deemed to have been validly appointed on regular basis. [**Emphasis applied**]

7. The Government of Sindh Agriculture, Supply & Prices Department on 09.08.2016, issued a Notification No.SO(A-VI)CP-D/1932/2012, pursuant to an order passed High Court of Sindh, Karachi in C.P. No.D-1615/2011 and connected petitions as well as mindful to the provision of 2013 Act, regularized the services of 63 Assistant Directors (Field) (BPS-17) of Ex-NPIW with immediate effect. Thereafter, on 16.01.2018, another Notification No.SO(A-VI)CP-D/1932/Seniority/2016 was issued in pursuance of orders dated 21.12.2017 passed by High Court of Sindh, Karachi in

C.P.No.D-1899, D-4433/2012 as well as 2013 Act and Rule 3 and Rule 9 (2) of Sindh Civil Servants (Probation Confirmation and Seniority), Rules, 1975, whereby all Ex-NPIW employees were deemed to have been regularized from the date of 25.03.2013, i.e. the date of promulgation of 2013 Act. However, after promotion of the petitioners to the post of Deputy Directors (BPS-18), the final seniority list of Deputy Directors (BPS-18) was issued on 28.05.2021, wherein the date of regular appointment in BPS-17 was shown as 16.01.2018 instead of 25.03.2013. Being aggrieved, the petitioners filed departmental appeals which remained undecided, hence they invoked the jurisdiction of SST for redress.

8. The bottom line of the impugned judgment rendered by learned SST is that the petitioners were appointed as Assistant Directors (BPS- 17) on contract basis in the year 2005/2006; they filed petitions in the High Court for regularization which were allowed vide order dated 02.10.2012; the department challenged the order in the this Court; meanwhile, the 2013 Act was promulgated and the civil appeals were disposed of by this Court as infructuous; the petitioners were regularized vide notification dated 09.08.2016; they filed contempt application before the High Court for their regularization from the date of promulgation of the Act, 2013; the department in pursuance of the order passed by the High Court issued notification dated 16.01.2018 whereby the date of regularization was shown as 25.03.2013; the regularized employees again filed petitions in the High Court for issuance of final seniority list of Assistant Directors (BPS-17) and considering them for promotion to the post of Deputy Directors (BPS-18); the High Court of Sindh vide judgment dated 17.12.2018 dismissed the petition on the ground that seniority of the civil servant shall be reckoned from the date of his regular appointment without considering its own judgment/order in earlier case whereby the directions were issued to treat effective the date of regularization from the date of promulgation of 2013 Act; the aggrieved employees challenged the judgment dated 17.12.2018 in this Court through CPLA No.498/2019 which was dismissed vide order dated 03.07.2019 on the statement of Additional Advocate General,

Sindh that seniority list of the petitioners has been prepared on 26.06.2019 which will be issued. In view of this statement, the civil petition was dismissed with the rider that if the petitioners shall have any further grievance in respect of the seniority list they may agitate it before the appropriate forum. Not only was the seniority list of Assistant Directors (BPS-17) issued effectuating the date of regularization such as 25.03.2013 but on its strength, further promotions were accorded to the post of Deputy Directors (BPS-18) vide notification dated 24.06.2019. However, pursuant to the order of High Court dated 17.12.2018, the date of regularization in the seniority list of Deputy Directors (BPS-18) was again modified as 16.01.2018 without issuing any notice or right of audience and it is also inexplicable, how the High Court took the divergent or conflicting views on seniority issue once it was already declared that the yardstick of determination shall be the date of promulgation of the 2013 Act.

9. The steering wheel of 2013 Act is Section 3 which controls and regulates the entire legislation for regularizing the ad-hoc and contractual employee's services. The aforesaid Act was promulgated on 25.03.2013 and under the dictates of Section 3, the employees on ad-hoc and contract basis performing duties immediately before the commencement of this Act were deemed to have been validly appointed on regular basis. The learned SST without taking into account the effect and impact of non obstante and deeming clauses assimilated under Section 3 of the 2013 Act held that seniority shall be reckoned from the date of regular appointment of such civil servant which in our view, the date of promulgation of 2013 Act wherein according to deeming clause, the regularization was made effective but SST held that the claim of seniority was not sustainable nor acceptable for the reason that it is not only against the abovementioned provisions of the rules but also affects the right of other employees appointed/promoted in between that period. Reliance was placed on the case of Vice-Chancellor Agriculture University Peshawar versus Muhammad Shafiq and others (**2024 SCMR 527**), wherein this Court held that

the regularization takes effect prospectively, from the date when a regularization order is passed.

10. No doubt, the seniority is reckoned normally from the date of regularization order but each case has its own peculiarities and distinct set of circumstances. Here, if truth be told, the regularization is deemed to have been in existence from the date of promulgation of 2013 Act by virtue of non obstante and deeming clauses which cannot be ignored acquiescently. The legal fiction is a fact that is presumed or made-up by a Court or legislature which is sustained veritable to allow the legal system to perform effectively and serviceably to achieve a just result. The doctrine of legal fiction does not only act as support system but is also an essential instrument for the amplification of law when existing facts or rules impede the Court from exercising jurisdiction or result in an unfair outcome. William Blackstone, eminent English jurist/judge, offered approval for fictions as useful tools for legal progress and other foundational jurists also defined it as an essential instrument for the evolution of law. Legal fictions stem from procedural necessity, they are not errors but used to trigger a specific legal rule.

11. In the case of Dr. Abdul Nabi, Professor, Department of Chemistry, University of Balochistan, Sariab Road, Quetta versus Executive Officer, Cantonment Board, Quetta (**2023 SCMR 1267 = PLJ 2024 SC 80**), in which one of us, while speaking for the bench discussed the effect of “deeming clause”. According to Black’s Law Dictionary, Ninth Edition, Page. 477-478, the meaning of the word “Deem” is to treat (something) as if it were really something else, or it has qualities that it does not have. “‘Deem’ has been traditionally considered to be a useful word when it is necessary to establish a legal fiction either positively by ‘deeming’ something to be what it is not or negatively by ‘deeming’ something not to be what it is...”. In order to interpret the statute, the Court is obligated to give effect to the deeming provisions while taking into consideration the object of such legal fiction and also dredge

up the rationales of statutory fiction to its cogent finale *vis-à-vis* the intention of legislature so it should not cause any injustice. Legal fictions give rise to explicit objectives restricted to the purposes which should be construed contextually but should not be elongated further than the legislative wisdom for which it has been created. The classic statement as to the effect of a deeming clause is to be found in the observations of Lord Asquith in *East End Dwelling Company Ltd. v. Finsbury Borough Council* that "where the statute says that you must imagine the state of affairs, it does not say that having done so you must cause or permit your imagination to boggle when it comes to the inevitable corollaries of that state of affairs".

12. In the case of All Pakistan Newspapers Society vs. Federation of Pakistan (**PLD 2012 SC 1**), this Court, while referring to the case of Mubeen-us-Salam v. Federation of Pakistan (**PLD 2006, SC 602**), held that the purpose of importing a deeming clause is to place an artificial construction upon a word/phrase that would not otherwise prevail and sometimes it is to make the construction certain. It was further held that a deeming clause is a fiction, which cannot be extended beyond the language of the section by which it is created or by importing another fiction. In the case of Mehreen Zaibun Nisa vs. Land Commissioner, Multan and others (**PLD 1975 SC 397**), it was held that when a statute contemplates that a state of affairs should be deemed to have existed, it clearly proceeds on the assumption that in fact it did not exist at the relevant time but by a legal fiction we are to assume as if it did exist. In the case of Central Bureau of Investigation, Bank Securities and Fraud Cell and Ors. V. Ramesh Gelli and Ors. (**(2016) 3 SCC 788**), the Court held that when the legislature creates a legal fiction, the court has to ascertain for what purpose the fiction is created and after ascertaining this, to assume all those facts and consequences which are incidental or inevitable corollaries for giving effect to the fiction.

13. Compliant with the canons of interpretation, the words of a statute are first understood in their natural, ordinary, or popular

sense. The phrases and sentences are construed according to their grammatical meaning, unless that leads to some absurdity or unless there is something in the context or the object of the statute that suggests the contrary or that lacks legislative power. The statutory interpretation resolves the legislature's intent by scrutinizing and scanning the language used while employing as a rule the ordinary, natural and grammatical meaning and the words are understood holistically and contextually within the province of statute and not in isolation. The Courts generally use a blend of three elemental rules, the literal rule that can be applied as a point of departure which communicates that if the text is explicit and unequivocal, the court must apply it as in black and white regardless of the consequences, while the golden rule can be used as *carte blanche* to avoid an incongruous or nonsensical result. It is applied when literal interpretation leads to irrationality, inconsistency, or injustice, so the Court may modify the meaning of the words to make the statute true-to-life. Last but not least, the mischief is meant to interpret the words/provisions of statutes in a way that repress the problem and add force to the envisioned remedy. The foremost duty of the Court is to interpret the law that makes it effective and workable rather than rendering it preposterous, therefore, the interpretation cannot be construed as nothing short of language exercise but as a skill of language that depends on judicial wisdom and legal acumen. At the same time, the philosophy of doctrine of reading down visualizes a rule of statutory interpretation in which the court, instead of striking down a law, brings it within the sphere of the Constitution. Indeed it is a saving device which is used to sustain and maintain the legitimacy of a statute or its provisions. Albeit the tool of "reading down" is a surgical tool which is used by Courts to save a law from being declared unconstitutional while the philosophy of "reading-in" is an exercise wherein the Court may add together words or phrases to settle down an unconstitutional omission.

14. The sphere of influence of the impugned judgment falls back on Rule 10 (1) and (2) of the Sindh Civil Servants (Probation,

Confirmation & Seniority) Rules, 1975 which explicates that the seniority of a civil servant shall be reckoned from the date of his regular appointment and no appointment made on ad-hoc basis shall be regularized retrospectively. Whereas sub-section (4) of Section 8 of the Sindh Civil Servants Act, 1973 also provides that seniority in a post, service or cadre to which a civil servant is promoted shall take effect from the date of regular appointment. There is no quibble or elusiveness on the reliance of aforesaid provisions but in tandem, the aforesaid rules in the exceptional circumstances cannot be read in preclusion but need to be harmonized within the exactitudes of Section 3 of the 2013 Act. If the law by virtue of deeming clause recognizes the date of regularization with clear-cut benchmark that an employee appointed on ad hoc and contract basis, who is otherwise eligible for appointment on such post and is in service in the Government department and its project in connection with the affairs of the Province, immediately before the commencement of this Act, shall be deemed to have been validly appointed on regular basis.

15. It is also a ground reality which was also admitted by the learned Additional Advocate General for the Province of Sindh without any demur that 2013 Act is in field with full force. Neither it has been declared ultra vires the Constitution or any law nor it was read-down nor read-in but its substratum is unwaveringly alive and well. At this juncture, the dictum laid down in the case of Abdullah Juman and others Vs. Province of Sindh and others (**2024 SCMR 1258**), is somewhat reminiscent wherein one of us (Muhammad Ali Mazhar-J) while speaking for the bench held that the High Court does not possess any suo motu jurisdiction under Article 199 of the Constitution of Islamic Republic of Pakistan 1973. In the case under reference, the High Court of Sindh while exercising suo motu powers under Article 199 of the Constitution, declared the 2013 Act to be ultra vires. Neither any contract employee approached the High Court to challenge the vires of the 2013 Act nor did any other person challenge it. On the contrary, the 2013 Act was in field since 2013 and under the same law, the cases of numerous contractual

or ad-hoc employees must have been dealt with by the government and regularized in service. The case before the High Court was to consider whether the petitioners before it were entitled for regularization of their services and obviously, if no case was made out, the petitions could have been dismissed but not only were the petitions dismissed by the High Court but the law was also declared ultra vires which disturbed and traumatized a long chain of employees who are regularized or were being regularized since 2013 by the Government of Sindh in its different departments/ministries under the same law without providing any right of audience to them which was a grave violation of Article 10-A of the Constitution and also amounted to the contravention of the principle of natural justice and due process of law. Ultimately, the impugned judgment of the Sindh High Court dated 08.04.2021 in the "Abdullah Jumani case" (supra) was set aside by this Court and the matter was remanded for deciding the Constitution Petitions afresh strictly on the question raised before High Court in the memo of petition rather than extraneous deliberation.

16. Now for all intents and purposes, there should be no further confusion with regard to the date of regularization of services in terms of Section 3 of the 2013 Act which is the parent act for dealing the regularization of ad-hoc and contract employees in the Province of Sindh and if the date of regularization is made effective from the date of promulgation of Act in terms of non obstante and deeming clause, neither it violates Rule 10 (1) and (2) of the Sindh Civil Servants (Probation, Confirmation & Seniority) Rules, 1975 nor the rigidities of Section 8 of the Sindh Civil Servants Act, 1973 as in both enactments gauge that determining the seniority is more or less same that seniority shall be reckoned from the date of his regular appointment but in the present case, the threshold is in point of fact the date of regularization elucidated under 2013 Act as a door step for determination of seniority which cannot be evaded unless and until the 2013 Act is in field as a good law. Obviously, there was no issue of eligibility otherwise there was no occasion to regularize the services with further promotion.

Insofar as individual grievances relating to the determination of inter se seniority or final seniority list are concerned for which as a first fact finding forum, the learned SST after due diligence may decide the controversy raised by the petitioners, respondents and the concerned department if there is any inter se seniority disputes between the parties claiming to have been appointed and regularized prior the promulgation of 2013 Act and attained seniority over the petitioners. So far as the date of regularization in terms of 2013 Act is concerned, it was straightened out much earlier by the law itself without any ambiguity in terms of Section 3 of the 2013 Act which does not require any further indulgence to resurrect or revitalize one and the same issue time and again and there was no justification of divergent views of the High Court either by the same bench or coordinate bench with regard to the effective date of seniority vis-à-vis the effective date of regularization.

17. In the wake of the aforesaid discussion, these Civil Petitions are converted into appeals and allowed. As a consequence thereof, the impugned consolidated judgment passed by the SST is set aside. However, for determination of limited point of reference as intensified and expanded in paragraph 16 of this judgment, the matter is remanded to the SST to decide the service appeals after providing ample opportunity of hearing to the parties, preferably within a period of three months after receipt of the copy of this judgment. These civil miscellaneous applications are disposed of accordingly.

Judge

Judge

ISLAMABAD

11.02.2026

Khalid

Approved for reporting

